

23SMCV03547 23SMCV03547

County: los-angeles

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Case Number: 23SMCV03547 Hearing Date: August 19, 2026 Dept: O

TENTATIVE RULING

August 19, 2026

23SMCV03547 (Celious v. Nustats LLC, et. al.)

RELEVANT BACKGROUND

On

August 2, 2023, Plaintiff Aaron Celious (Plaintiff) filed his initial complaint against defendants Nustats LLC (Nustats), Martin Kunzmann (Kunzmann), Fred Gsell, Ryan Mccutchan, Marco Garcia, County of Los Angeles Metropolitan Transportation Authority, and Does 1-15.

On

March 6, 2024, Plaintiff filed his First Amended Complaint (FAC) against the same defendants.

On

June 6, 2025, the Superior Court of the State of California entered an order in Aaron Celious v. City of Los Angeles, et al. (LASC Case No. 22SMCV00915) declaring Plaintiff to be a vexatious litigant within the meaning of Code of Civil Procedure section 391(b). (See 4/21/26 Notice, Ex. A.)

On

June 14, 2024, Plaintiff filed an amendment to the complaint (fictitious/incorrect name) to name Cabral as a Doe defendant, but the order was not signed by the Court and therefore has no effect. (See Amendment to

Complaint (fictitious/incorrect name), dated 06/14/2024.)

On

November 10, 2025, Plaintiff filed amendments to the complaint (fictitious/incorrect name) to name Shah and Nuinvest as Doe defendants. (See Amendments to Complaint (fictitious/incorrect name), dated 11/10/25.)

On

November 21, 2025, Plaintiff filed his Second Amended Complaint (SAC). The SAC alleges five causes of action against defendants Nustats, Kunzmann, Nuinvest LLC (Nuinvest), Miguel Cabral (Cabral), Nisha Shah (Shah), and Does 1-15: (1) promissory estoppel; (2) breach of written contract; (3) breach of fiduciary duty; (4) fraud; and (5) concealment.

On

April 21, 2026, Shah filed a notice that Plaintiff was declared a vexatious litigant on April 7, 2025, and that the filing of this notice automatically stays this Action pursuant to Code of Civil Procedure section 391.7(c). (See 4/21/25 Notice, Ex. A.)

INSTANT MOTIONS

On March 3, 2026, Cabral filed the instant motion to dismiss the SAC for failure to comply with the existing prefiling order.

On April 2, 2026, Shah filed the instant motion to dismiss the SAC for failure to comply with the existing prefiling order.

On February 17, 2026, Kunzman filed the instant demurrer to the entire SAC.

On December 16, 2025, Cabral filed the instant demurrer to the fourth cause of action alleged in the SAC.

DISCUSSION

I.

MOTIONS TO DISMISS

A

lawsuit filed in derogation of a prefiling order is subject to dismissal. (See e.g. Hupp v. Solera Oak Valley Greens Assn. (2017) 12 Cal.App.5th 1300, 1314; Kovacevic v. Avalon at Eagles' Crossing Homeowners Assn. (2010) 189 Cal.App.4th 677, 684.)

Code

of Civil Procedure section 391.7, which authorizes dismissal, was intended to preclude a plaintiff from initiating a meritless lawsuit and prevent the costs associated with defending such litigation. (Shalant v. Girardi (2011) 51 Cal.4th 1164, 1175.)

Code

of Civil Procedure section 391.7 provides:

In addition to any other relief provided in this title, the court may, on its own motion or the motion of any party, enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. Disobedience of the order by a vexatious litigant may be punished as a contempt of court.

The presiding justice or presiding judge shall permit the filing of that litigation only if it appears that the litigation has merit and has not been filed for the purposes of harassment or delay. The presiding justice or presiding judge may condition the filing of the litigation upon the furnishing of security for the benefit of the defendants as provided in Section 391.3.

The clerk may not file any litigation presented by a vexatious litigant subject to a prefiling order unless the vexatious litigant first obtains an order from the presiding justice or presiding judge permitting the filing. If the clerk mistakenly files the litigation without the order, any party may file with the clerk and serve, or the presiding justice or presiding judge may direct the clerk to file and serve, on the plaintiff and other parties a notice stating that the plaintiff is a vexatious litigant subject to a prefiling order as set forth in subdivision (a). The

filing of the notice shall automatically stay the litigation. The litigation shall be automatically dismissed unless the plaintiff within 10 days of the filing of that notice obtains an order from the presiding justice or presiding judge permitting the filing of the litigation as set forth in subdivision (b). If the presiding justice or presiding judge issues an order permitting the filing, the stay of the litigation shall remain in effect, and the defendants need not plead, until 10 days after the defendants are served with a copy of the order.

(Code Civ. Proc., § 391.7, subd. (a)-(c).)

Here,

Shah and Cabral both argue that the SAC was improperly filed on November 21, 2025, after the June 6, 2025, prefiling order, in violation of Code of Civil Procedure § 391.7(b) and (c) because Plaintiff never sought or obtained an order from the presiding judge permitting the filing of any new litigations. The Court agrees.

Additionally,

the amendments to the complaint (fictitious/incorrect name) filed by Plaintiff on November 10, 2025, naming Shah and Nuinvest as Doe defendants, were also improperly filed in violation of Code of Civil Procedure § 391.7(b) and (c). (See Amendments to Complaint (fictitious/incorrect name), dated 11/10/25.)

With

respect to Cabral, the amendment to the complaint (fictitious/incorrect name) filed by Plaintiff on June 14, 2024, to name Cabral as a Doe defendant had no effect because the order was not signed by the Court. (See Amendment to Complaint (fictitious/incorrect name), dated 06/14/2024.)

Based

on the foregoing, Shah and Cabral's motions to dismiss the SAC are GRANTED.

II.

DEMURRERS

In light of the above, the Court finds that the Demurrers are MOOT.